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r/neoliberal • 5y ago

FireDistinguishers



Congress 102: The Very Very Very Start of Understanding the Senate

Effortpost

Edit: Forgot to give you guys links to the old posts, here you go

[Part 0](#) [Part 1](#) [Part 2](#)Edit 2: Fixed some grammatical issues, shoutout [u/lose_has_1_o](#), I really need to proofread these things

Edit 3: Added language to highlight the fact that measures of Unanimous Consent are votes on motions of procedure, not the bill itself

Introduction

Took me long enough to get to this one, didn't it? Why would I leave you guys hanging for the next installment despite the fact that I spaced the posts about the House out by days not weeks? Well, in part things are more complicated in the Senate than in the House. Also, I have a day job, might have mentioned it before.

Anyway, in my last post I said the next post I'd write would be about Committees. That's twice I've lied now.

The Fortress of Friendship (I'm not kidding)

Despite being named after Sheev Palpatine, the United States Senate isn't a force-attuned body. Quite the opposite in fact, the entire purpose of the Framers in giving Senators six-year terms with a staggered cycle of replacement (one third of the chamber is up for reelection every two years) is to make sure that the institution is pretty insulated from the political forces that dominate the country at any given time. Sounds counterintuitive to our ideals in this country, right? Why would we want part of our Government to be less susceptible to popular forces? Well, let's remember how many seats the Tea Party Congressmen won in the House, and how many they won in the Senate. Same thing goes for the Qultists, they might find *support* in the Senate, but they don't win seats in here.

Taken to it's logical conclusion, this is just one part of the reason the Senate is so different from the House. If the President and everybody in the House changes in a single election (which technically *could* happen), then two-thirds of the Senators of this country would still be the same people they were in the last Congress. Even if leadership switches hands, the fact that it's those same guys in there mean that things that go beyond the rules and operating procedures of the body can stick around for a long time. Friendships and rivalries among Senators (which are surprisingly critical to the work that happens in the Chamber) are forged across years of working with people, calling them every morning, eating lunch with them in the afternoon, and staying up with them on the floor at 3am because there was unfinished business to attend to.

Honest to God, everyone recommends you read Gold's *Senate Procedure and Practice* or *Riddick's Rules* (which are great resources, I won't downplay that), but if you really want to understand the Senate you need to buy Al Franken's book. There's 100 Senators, they all know each other. There isn't a fake cordial coworker attitude like you have in a big company when you're in the office break room. These people are usually *actual* friends, and that makes an insane difference.

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first thing we do is shop it around Caucuses to try and get some cosponsors. We don't know who's going to be interested in our bill, but maybe we know some Caucuses that focus on these issues so if we bring it up to the Caucus chair then we'll get some other Representatives who are interested in working with us.

In the Senate it isn't necessary to go to the Caucuses and treat them like bulletin boards. If we're shopping a bill around then my Senator will probably say "Oh you know who loves this stuff? Inhofe. I'll call him when I'm in my hideaway later and see if he wants to move forward with a letter, you should reach out to Heinrich and Reed's people, and I think I can talk to Schatz when we get lunch later to see what he thinks about all of this." Just like that we informed 1/25th of the Chamber, and the Chair and Ranking member of the Armed Services Committee, about what we were doing, and we probably just got them all to cosponsor our bill.

Friendship. Turns out, it's not just something made up by George Lucas for Return of the Jedi, it's existed since 1787 at the least and it's a vital part of running this country.

Drag this out, and coalitions of friendships emerge. When describing the majority in the Senate, there's the standard definition of whichever caucus leads the Chamber, but also the simpler definition of "whoever the hell is on the big side of any given argument." Party leaderships negotiate things based on the priorities and personalities of individuals, often speaking with individual Senators who aren't a part of their caucus directly. For what it's worth, this is why I appreciate working in the Senate so much. In the House, the Majority Leadership are some of this country's rulers. In the Senate, every individual Senator is one of this country's rulers.

The Basics of Legislation

Paradoxically, despite having fewer rules than the House that govern behavior on the floor (to foster flexible debate and negotiation), the Senate is more complicated than the House could ever fucking wish to be.

It isn't really a paradox, fewer rules means things are less structured, and the less structure there is the more complicated things can become. I'll try and give you a basic overview of what happens in the Chamber but it's dynamic so you really should take some time to go through other sources. *Senate Procedure and Practice* by Martin Gold is a classic, *Riddick's Rules of Procedure* is a classic, Al Franken's book is surprisingly useful at times, and *Inside Congress* taught me everything I knew when I was a humble Staff Assistant still trying to figure out what the lights on the clock meant (instead of just giving up and checking Webster because it's not 1962 anymore). Also, check rules.senate.gov. Great place to look things up.

Unlike in the House where the rules and their determination are critical to understanding how most legislation will move through the chamber, in the Senate the rules don't apply to most bills that pass. Guidelines of debate that are hallmarks of the House get thrown out the window on the North side of the Capitol. So how do things actually pass?

Three words, two categories, say them, and you'll move a bill through the Senate. "Unanimous Consent" and "Cloture."

We talked about **Unanimous Consent** in the House before but in the Senate it's a bit different. On the House side, the Majority and Minority Leadership agree to terms of debate for a certain bill that will allow it to move through the chamber in a 435-0 vote. On the Senate side, to the best of my knowledge anybody can propose that a bill move through the chamber with unanimous consent, and if it does then the measure actually doesn't even make it to the floor at all. Functionally, if you're trying to pass a bill through unanimous consent,

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The bills that are considered this way don't even have their motions to proceed voted on on the Floor of the Senate anymore, it's all digital. There's a hotline that all the members can access, I'm pretty sure they get most of their access through their emails, and they have this conference call twice a week I think to actually do the votes. It's fun living in the future isn't it, James Monroe could never.

Cloture isn't actually a mechanism of debate either, quite the opposite, it's a mechanism to shut debate down. If 3 out of every 5 Senators says "Yeah, I've had enough of this shit, can we *please* move on?" then any further debate on the measure that people are tired of needs to be concluded within 30 hours of in-session time (which usually adds up to one week in the Chamber depending on the Calendar). Cloture isn't actually a vote on the measure in debate either. Given today's numbers of 100 Senators (which I hope might be going up soon), if 60 Senators vote for cloture but only 52 Senators vote Yea on a measure, the measure still passes.

Naturally, Cloture is a counter to the filibuster (which I'll talk about in a bit), but it's also a counter to regular prolonged debate that was rampant in the early Republic, and still exists to this day. The framers wanted the Senate to be a place where *actual* negotiation could happen on the Floor. In Jefferson's mind, Senators would receive a proposition from the House, and if two of them disagreed then they could talk it out right there and maybe bring their opponent to their side instead of falling back blindly on their constituents' opinions.

It'd go something like this:

"Senator [u/Luchofromvenezuela](#) , this proposition is absolutely preposterous. Placing [u/FireDistinguishers](#) ' stories from inside the Chamber into the main text of the prezpoll Senator opinion posts will distract our users from rating these Senators on merit of their political positions and work history. It would make the posts into a simple personality contest."

"But Senator [u/JaceFlores](#) , the posts are already colored by those stories. A person must merely scroll down to see them, at which point he or she will immediately scroll back to the link and vote on their ranking. Look at how [u/FireDistinguishers](#) inflated Chris Van Hollen's ranking by consistently praising him week after week until we finally voted on him. Besides that, the poll is quite the personality contest already, look no further than Senator Collins' rank to see such a thing."

"I understand your point Senator, but you must remember that while a person's opinions may be influenced by these factors, endorsing these factors would be a waving sign that formulating your thoughts on these Senators should indeed be based on personality. While I can accept that some users already do so, I cannot insinuate that such a thing is right."

"You make an excellent point Senator, I concede."

Now, what if that went on for six days? Well some rules of the Senate have been formulated for exactly that kind of behavior to go on *while* the Chamber attends to other business, but before those days if you were just tired of hearing some guys talking about something that should've been resolved already, then you and 59 of your buddies could officially tell those guys to shut the hell up so everyone can get back to work. 59 being modular of course, could be more in the future, definitely was less in the 1820s, it's just 3 out of 5.

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carefully, there need to be incentives for people to vote for things they wouldn't normally vote for. Mostly, that takes the form of IOUs, "If you vote for this bill you don't like, I'll vote for one of your bills I don't like." These kinds of bills can often times be built into packages of bills, and every office knows that these are a great way to get more contentious laws passed. If something is extremely contentious, language might be plucked from one bill and placed in another one to sweeten it up. The NDAA is a great example of this, because it has to pass every year.

There's a phrase that an LA told me once, "In the House your job is to pass a bill, but over here your job is to pass language." Does that mean nobody cares if bills pass? Absolutely not, it's just not my job, it's my Member's job. They have everyone in their contact list and they have every chance to see the other 99 people who vote alongside them. Senators pass laws, Senate staff pass language.

Presiding

Now, ok, technically the Vice President is the Presiding Officer of the Senate in the same way that the Speaker of the House is the Presiding Officer of the House, but the Vice President has a ton of things to do, so they can be pretty hands-off. That depends on the person and on the circumstances of any particular Congress as well. Vice President Harris will be in the Capitol a lot because of the 50-50 split. Vice President Pence showed up from time to time to serve as a liaison between the Executive and Legislative branches and maybe make deals, but he wasn't there a ton. Vice President Biden loved the Senate, so he'd be around more than was necessarily required of him because he knew he could serve President Obama's agenda pretty well from the Capitol. Vice President Cheney was too busy being the President to be the Vice President. It really all depends.

When the Vice President isn't around, the Presiding Officer is the President Pro Tempore, a role automatically given to the most senior member of the majority since the late 1800s. Most of the time, the President Pro Tempore doesn't want to preside over the Senate because he or she has other shit to do, so the presiding chair is usually filled with somebody else from the majority party (more often than not, younger members, I can't wait to see Ossoff presiding).

I know what you're thinking. "Wait, they just let anybody from the majority party preside? But the Speaker of the House is such a powerful position, but over here they just give it to whoever the hell they can find??" Yeah, basically. Since things are looser in the Senate, the role of the Presiding Officer is more limited. It's still powerful, and an incredible way for anyone who's sitting in the chair to actually learn the realities of the Senate floor and parliamentary procedure, but from a tactical perspective the only reason you need someone there is to make sure that there's a member of the majority party present and softly leading the Chamber at all times when the Senate is in session. High ranking Senators, senior Senators, Senators with considerably important Committee assignments can't do that shit, they have other fucking places to be while the floor is still open in debate. A kid who just won their first term though? Someone who still really needs to learn the rules? Put them in charge as a way to force them to study, and you can go about your business while they watch things and make sure nothing falls apart. It's like having a 14 year-old babysit a 5 year-old. The parent just need to go to the store really quickly and buy batteries for the TV remote, so you get the teenager to make sure their baby sister doesn't break anything until you can get back. The teenager learns a valuable lesson about how hard it is to keep a child from hurting themselves, the child doesn't hurt themselves, and the parent can buy the batteries and fix the problem they were having without having to worry about anything.

Conclusions

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work done. Deals are the real MO over here, and combining the rules that we have to play by and the deals that we have to make can really confuse viewers who can't easily track what the hell is happening at any given moment. You look at the House floor and people are in their seats, talking, maybe walking around a little. You look at the Senate floor and everybody's everywhere and nobody knows where to sit and there's paper all over the ground and one desk is full of candy, it's insane. I love it, but it means I'm going to have to take more time explaining what the hell is happening here. I'm not even a third of the way through the Senate, and this is already the longest post I've written. I won't even make a promise about what the next post is about because I don't want to fake you guys out again, but maybe we talk about a certain thing that starts with the letter "F" and ends with "ilibuster."

↑ 207 ↓ 27

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Lord_of_your_pants • 5y ago

As a House staffer, this is great.

Also as a House staffer, please for the love of God don't get rid of the filibuster. Do you WANT the Senate to become a more pretentious version of the House?



FireDistinguishers OP • 5y ago

Oh buddy we're gonna get to the fucking filibuster and all the wonderful and awful reasons to keep it around and throw it in the garbage



Lord_of_your_pants • 5y ago

I'd really love your opinion on whether or not strengthening the filibuster will help with the issue. Ensure that Senator Cruz has to bring tennis shoes and depends to talk about sesame street or green eggs and ham and don't treat threats to filibuster as the same as an actual filibuster. Can't wait to hear more!



1 more reply



Big_Apple_G • 5y ago

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the electoral politics out of it, and I would guess that they would expel them both in a heartbeat.

With the election of people like Tuberville and Marshall, it seems to me (and correct me if I'm wrong OP) that for the first time in generations the interpersonal atmosphere of the Senate is under threat. It'll be interesting (and probably very unsettling) to see how things play out over the next 4 years as more of the old guard of the Senate retires.



FireDistinguishers OP · 5y ago

I might have actually been a bit too generous in my explanation of how the friendships operate. I shouldn't say they're **all** friends with each other, they all know each other very well and many of them are genuinely friends, but throughout history there have been times when Senators didn't get along. Edward Brooke and Strom Thurmond hated each other and kept very separate company, so did Barbara Mikulski and Barry Goldwater. I'd say there's friendships in groups of 2-10 that overlap, and broader associations in groups of about 30, so at any given point you're only one or two steps away from any sitting Senator if you're trying to get work done. That being said, you walk with everyone, you talk with whoever's next to you, Senators are just people.

Tuberville and Marshall have their places, in the groups that hang around further to the right of the political spectrum, so a pretty liberal or progressive Senator might not talk with them often but if you're writing a bill about one of their interests you'll still try and catch them on the train and talk it out with them in person. As for Cruz and Hawley, do you remember when Tom Cotton wrote that letter undermining the JCPOA? If you do, congratulations, you have a better memory than anyone in the chamber. There's too much work to be done to hold grudges like that, I know damn well by summer they'll be cosponsoring bipartisan bills again.

That being said, things are more polarized, friend groups have stayed the same size just about but it's rarer to have a friendly relationship with people you disagree with vehemently. Joe Biden was kind of part of the final crowd of Senators who could say they would be friends with Edward Brooke and Strom Thurmond. That's been a more long-term change. It's something that really started in the 80s with Barbara Mikulski, Barbara Boxer, and Dianne Feinstein, the unapologetic, strong, hardworking clique that went head-to-head with Reagan himself and his cronies in the Senate day after day. I'm not saying they caused all this, but they were really the first group that operated in the way that most groups do today. Aside from that, I think it's something that can be easily reset if the chamber is really swept, so it's not a huge concern for me.



Big_Apple_G · 5y ago

Ahh I see, thank you for clarifying. Is there any particular reason that you lumped Brooke and Thurmond together? I was under the impression that Brooke was a very moderate Republican. Were you just trying to express how Biden comes from a very different generation of Senators?



4 more replies

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Senators (generally) no longer permanently move to DC and they fly home on the weekends, generally reducing the amount of opportunities previous Senates would have getting to know each other. The senate has long been a forum of moderation, but that's become increasingly difficult as the bases of each party become more radicalized and Populist (though I would contend this is a bigger problem on the GOP side).

Just to add a few more fun Senate relationship stories: Senator Barbara Mikulski (D-MD) as she become a senior figure in the Senate would generally take all the women of the Senate out to dinner once a month for them to come together as women, but also to strengthen the relationships of the lawmakers. (Senator Mikulski is also the reason women can wear pants on the Senate floor now)

Another good one is about Ted Kennedy (D-MA) and Orrin Hatch (R-UT). Orrin Hatch really liked to write music and he and Ted had a very good working relationship for being on different ends of the political spectrum. Ted was trying to get his support on a bill at one point, so Ted acquired one of Hatch's own songs and had one of his staffers serenade him, partially resulting in Hatch supporting the bill. It's these types of relationships that seem to be on the decline in the modern Senate.

**Peacock-Shah** • 5y ago

!ping BESTOF

**FireDistinguishers OP** • 5y ago

Ah he always comes through, appreciate the praise buddy

**groupbot** • 5y ago • Edited 5y ago

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**Peacock-Shah** • 5y ago

With rare exceptions, I've always been very impressed with the former members of the Senate that I have interacted with; at least some of them struck me as what is best described as "statesmen" (or women), and all but one has stressed the importance of unity.

Mind you, I could say that of most House members I have interacted with as well, but less so & more likely due to selection bias.

**jk94436** • 5y ago

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I don't, lol, but I've interacted with a few (10 or so).

**whycantweebefriendz** • 5y ago

I meet the most conservative senators once a week

You know, for blowjob reasons

**Zuraziba** • 5y ago

Good write up. I'd like to just add a few things on cloture, since to me it's a really fascinating rule/mechanism.

For the first 100+ years of the Senate's history cloture did not exist. It was adopted as rule 22 of the Senate in 1917 because many Senators were threatening to filibuster Wilson's war agenda. At first, cloture required 2/3rds support in order to formally end debate in the senate. The first time cloture was invoked was in 1919—to end a filibuster of the treaty of Versailles. From the rule's inception to the cloture vote of the Civil Rights Act of 1964, cloture had only been invoked successfully 5 times. This made the prospects of invoking cloture exceedingly rare. In 1975 the threshold for cloture was reduced from 67 to 60 votes. Nowadays cloture is invoked on a relatively frequent basis (though this also has to do with the nuclear option being used twice). As the senate an institution has eroded over the years, cloture has certainly evolved in a way the rule was likely not intended.

**Luchofromvenezuela** • 5y ago

I didn't expect at all to appear as a cameo in this write up. Very interesting, as all of your posts. Keep it up!

~~Now where's my \$2k check~~

**TrekkiMonstr** • 2y ago • Edited 2y ago

if you really want to understand the Senate you need to buy Al Franken's book

[This one?](#)

In the House your job is to pass a bill, but over here your job is to pass language.

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that's the one!

Clarifying: House offices (at the time I wrote this when the president and the House are of opposite parties, which still applies but Republicans are weird) care about passing full bills, usually making them as specific as possible, to generate news stories that go something like "(Random House Member) sponsored/passed a bill that will (do x)"

In the Senate though, we don't care about the full bills as much as we care about one or two specific sentences or paragraphs inside a bill. All that matters is that somehow, some way, the words we wrote make it into law, no matter if it's a part of our bill, somebody else's bill, a giant authorization bill that needs to get through, or even an EO/PPD. If a string of words we wrote is something enforceable, that's all that matters

**TrekkiMonstr** • 2y ago

Would you say that's because of the election cycle? That is, someone in the House needs to be able to say, "I got X, Y, and Z legible accomplishments, so please reelect me", whereas the Senate is more worried about the actual impact of bills, since they have a six-year cycle? Does this create tension between the chambers, where Representatives are trying to stop their bills getting too messy while Senators are adding language to get to UC?



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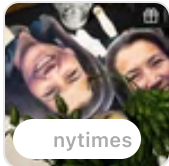
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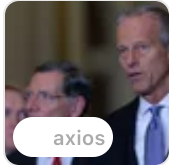
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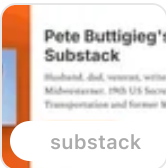
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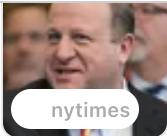
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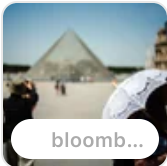
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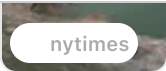
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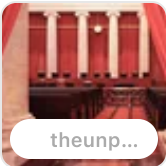
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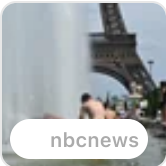
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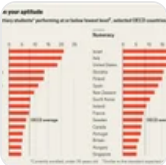
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